

Circumstances], and Issue No. Four [Plaintiff's Second Cause of Action for Battery Fails Given no Excessive Force was Used], the Motion for Summary Adjudication is likewise denied based upon the same Undisputed Material Facts cited above. In regard to Issue Three [Plaintiff's Theory for Denial of Medical Care Under Her First Cause of Action Must be Dismissed Because Plaintiff Lacks Sufficient Facts to Support Her Claim], the Court grants Defendants' Motion in this regard, finding no triable issue of material fact exists [See UMF Nos. 61, 62; Index of Exhibits in Support of Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication at Exhibits D and E; Requests for Admission Nos. 2 and 3, and Responses thereto]. Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

**9. 24CV02857 PLATTS, TOBIAS, II ET AL V. JOHNSON, MARK ET AL**

*EVENT: Defendant's Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary and Terminating Sanctions*

Defendants have failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is thus continued to July 1, 2026 at 9:00 a.m. for the filing of a Separate Statement.

**10. 25CV00744 FISHER, JEFF V. FISHER, JENNIFER**

*EVENT: Amended Motion for Stay of Enforcement Pending Appeal*

While the notice period complies with *Code of Civil Procedure* §1005, the proof of service showing service by email on May 8, 2026, service was made on Defendant's prior counsel – Leonard C. Hart Nibbrig. However, on May 6, 2026, Defendant filed a Substitution of Attorney wherein Mr. Nibbrig substituted out, and Defendant Jennifer Fisher, indicated she would be proceeding in pro per. There is no evidence that the Motion was served on Jennifer Fisher and the Court therefore continues this matter to July 1, 2026 at 9:00 a.m. to allow for proper notice. Plaintiff Jeff Fisher is ordered to serve a copy of the Amended Motion with notice of the new hearing date on Defendant Jennifer Fisher, and file with the Court a proof of service.

**11. 25CV04054 BLOW, TRAVIS ET AL V. MENTUS, ANDREY ET AL**

*EVENT: Defendants' Motion to Vacate Entry of Default*

Defendants/Cross-Defendants Ilya Lutsik; Anatoliy Semenovich Lutsik; and Lutsik Construction and Design, Inc.'s (collectively "Cross-Defendants" herein) Request for Judicial Notice is granted. The Court finds that Cross-Defendants have satisfied the statutory requirements for relief under both the mandatory and discretionary relief provisions of *Code of Civil Procedure* §473(b) and the Motion to Vacate Entry of Default is granted. The Default entered on April 17, 2026 is set aside and Cross-Defendants

shall file and serve their responsive pleading within 10 days' from the date of this hearing. Counsel for the Cross-Defendants shall prepare and submit a form of order consistent with this ruling within two weeks.

**12. 25CV04143 ROBINSON, JOSEPH V. SELLAND, DAMON**

*EVENT: Defendant City of Chico Code Enforcement Officer Selland's Demurrer to Second Amended Complaint*

Defendant City of Chico Code Enforcement Officer Damon Selland's ("Defendant" herein) Request for Judicial Notice is granted pursuant to *Evidence Code* §452(d) [Court Records]. The language in the Second Amended Complaint that Defendant argues is beyond the scope of the Court's prior Ruling on the Demurrer is found at Page 4, Paragraph 5, and states "5. Defendant knowingly, intentionally, willfully and maliciously abused the power of his office to inflict emotional distress upon Plaintiff under color of law." The Court agrees that this additional theory of liability is beyond the scope of the Court's Ruling on the prior Demurrers and does not directly address the Court's reason for sustaining the Demurrer. See, *Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."]; See also, *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995. As such, the Court previously ruled that should the Complaint be amended further following the Court's ruling on the prior Demurrer, no such allegation shall be included. Plaintiff however again included such language, which remains improper.

The Demurrer to the entire Second Amended Complaint is granted on the grounds that (1) Plaintiff has again failed to allege he exhausted administrative remedies subject to the claim presentation requirements set forth in the *Government Code* §810 et seq.; and (2) Plaintiff has again failed to allege facts sufficient to show an exception to the discretionary immunity in *Government Code* §820.2, and statutory immunity in *Government Code* §§820.4 and 821.6, thus the Second Amended Complaint again fails to state facts to support any cause of action pursuant to *Code of Civil Procedure* §430.10(e). The Court further finds that that the Second Amended Complaint remains uncertain, ambiguous, and unintelligible, and therefore fails to state facts sufficient to constitute a cause of action pursuant to *Code of Civil Procedure* §430.10(f) and (e).

The Demurrer is sustained in its entirety without leave to amend. The Court will utilize the form of order submitted by the Defendant and this matter shall remain on calendar on August 26, 2026 at 10:30 a.m. for status of dismissal.